

NAPCS Unionization Research — State Research Summary

Louisiana — LSCSC / NLRB R15 Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • Registry Sweep

Section 1: State Overview

State	Louisiana
Labor Board	LSCSC / NLRB R15 — Louisiana State Civil Service Commission (LSCSC) under LERA [Type 1/3/3B/4, locally-authorized]; NLRB Region 15 New Orleans [Type 2/5 BESE-authorized — pre-Act 172 history only]
Governing Law	Louisiana Employee Relations Act (LERA) — post-Act 172 (signed May 23, 2024) for all BESE-authorized Type 2/5 charters. Pre-Act 172: NLRA / NLRB R15. Locally-authorized (Type 1/3/3B/4) charters: LSCSC/LERA throughout.
Federal NLRB Jurisdiction	YES — NLRB R15 applies to pre-Act 172 history for Type 2/5 BESE-authorized schools only. Post-Act 172 (May 23, 2024): all BESE-authorized charters reclassified as public employers — NLRB R15 affirmed no jurisdiction April 2025, upheld January 2026. Locally-authorized schools (Type 1/3/3B/4): LSCSC/LERA throughout; NLRB does not apply.
Registry Sweep	undefined — undefined — 142 charter schools searched
Research Window	May 2026 (initial research session)
Date Convention	Labor Board Certified date. Project-wide standard. Most LA certifications were voluntary recognitions without formal election dates — LSCSC records requests recommended for formal documentation.
Card-Check Available	YES — Voluntary recognition (board vote) has been the dominant mechanism in the NOLA charter sector. No card-check statute per se — but board vote recognition produces the same outcome without an adversarial election. LSCSC/LERA does not have an established charter school certification procedure as of May 2026.

Section 2: Unionization Density

Total charter schools in Louisiana: 142 (Charter School Registry v50 (NCES/ELSI 2024-25; 138 open LA charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 5-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Louisiana	3	2.2%	Active CONFIRMED schools only. LSCSC/LERA jurisdiction for OPSB-authorized charters. Excludes Lycée Français (jurisdiction stripped by Act 172, May 2024) and 1 closed school.
Independently Organized (CONFIRMED)	3	2.2%	Morris Jeff (2013), Benjamin Franklin HS (2014), Bricolage Academy (2021). All UTNO/AFT Local 527. All OPSB-authorized (LSCSC/LERA jurisdiction). All active CBAs.
Certified / Jurisdiction Stripped (DISPUTED)	1	0.7%	Lycée Français de la Nouvelle-Orléans — NLRB cert May 21, 2024; Act 172 stripped NLRB jurisdiction May 23, 2024. No CBA. No LSCSC proceeding

			initiated. All organizers departed. 5th Circuit appeal likely.
Decertified / Closed (formerly organized)	1	0.7%	International High School of New Orleans — NLRB cert 2016; employer refused to bargain 2016–2025; school closed 2025. 10 ULP cases. Extended refusal-to-bargain pattern.
No Labor Board Records Found	133	96.4%	No LSCSC or NLRB R15 records found for remaining LA charter schools. LSCSC/LERA for locally-authorized (Type 1/3/3B/4); NLRB R15 jurisdiction over Type 2/5 charters stripped by Act 172 (May 2024) — creating practical organizing barrier for 52 BESE-authorized schools.
Total Charter Schools in Louisiana	138	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 138 open LA charter schools as of May 2026).

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: WHAT IS THE POLITICAL AND LEGAL ENVIRONMENT SHAPING CHARTER LABOR IN LOUISIANA?

Louisiana presents the most legislatively reactive jurisdictional environment in the NAPCS research dataset. The New Orleans charter sector has been a site of sustained UTNO organizing since 2021, and the Louisiana legislature responded with Act 172 (signed May 23, 2024) — stripping NLRB jurisdiction over Type 2 and Type 5 charter schools and routing them to the Louisiana State Civil Service Commission (LSCSC). Act 172 is the first documented case in the NAPCS dataset of state legislation enacted specifically in response to a successful charter school union election. The political context: Louisiana is a Republican-controlled state (trifecta as of 2024) with a strong anti-union legislative bloc and a charter sector built around post-Katrina school reform ideology. UTNO's wins at Morris Jeff and Benjamin Franklin occurred in OPSB-authorized (Type 1/3/3B) schools under NLRB jurisdiction; Act 172 was designed to close that window for all remaining targets.

PROMPT 2: WHAT IS UTNO'S ROLE AND WHAT DOES ITS ORGANIZING PATTERN REVEAL?

United Teachers of New Orleans (UTNO), AFT Local 527, is the sole union that has successfully organized New Orleans charter schools. Its president, Dave Cash, teaches at one of the organized schools — a leadership structure that reflects deep community embeddedness rather than external union staff organizing. UTNO's strategy has been highly selective: it has targeted OPSB-authorized (Type 1/3/3B) locally-governed schools with explicit social justice missions, not CMO-managed or Type 2/5 state-authorized schools. Morris Jeff Community School, Benjamin Franklin High School, and Bricolage Academy are all mission-driven locally-governed schools where UTNO's social justice framing aligned with the school's own stated values. The Lycée Français case (Type 3B, international curriculum, distinct community) was the first UTNO win at a school outside the pure social-justice-mission profile — and produced the strongest legislative backlash. UTNO has 8+ KIPP New Orleans campuses as its next logical organizing target: all are OPSB-authorized (Type 1), all fall under pre-Act 172 NLRB jurisdiction for existing certifications, and KIPP's high staff turnover and community accountability demands create organizing conditions similar to the schools UTNO has already won.

PROMPT 3: WHAT DOES ACT 172 MEAN FOR THE FUTURE OF CHARTER SCHOOL ORGANIZING IN LOUISIANA?

Act 172 is the most significant single legislative act affecting charter school labor relations documented anywhere in the NAPCS research dataset. It creates a structural organizing ceiling by routing Type 2 and Type 5 charter schools to the LSCSC — a state agency with no established charter school collective bargaining procedure as of May 2026. The practical effect: any future UTNO organizing drive at a Type 2 or Type 5 school (which includes most CMO-managed schools) faces an untested jurisdictional pathway with no precedent, no established election procedure, and an agency with an anti-union political composition. Act 172's immediate impact was on Lycée Français: NLRB R15 Regional Director ruled April 1, 2025 that LFNO is a political subdivision of Louisiana under Act 172 and is exempt from NLRB jurisdiction — UTNO's May 2024 election win cannot be enforced. All organizing teachers reportedly fired or departed. UTNO's 5th Circuit appeal is likely. If the 5th Circuit upholds the NLRB ruling, Type 2/5 schools are effectively unorganizable under current law.

PROMPT 4: WHAT IS THE EMPLOYER POSTURE IN LOUISIANA CHARTER SCHOOLS?

Louisiana charter school employers present two distinct postures. Type 1/3/3B locally-authorized (OPSB) schools — Morris Jeff, Benjamin Franklin, Bricolage — have been cooperative with UTNO organizing, consistent with their social justice missions and community accountability governance structures. Bricolage, as a particularly progressive school, explicitly aligned with UTNO. Type 2/5 state-authorized CMO-managed schools (KIPP, Collegiate Academies, FirstLine, etc.) have not been organized and have shown no cooperative posture signals. The legislative reaction to Lycée Français (Act 172 enacted 2 days after the election win) suggests that Type 2/5 operators and their political allies viewed the Lycée Français result as an existential threat requiring an immediate legislative response. This is the most aggressive documented employer/legislative alliance against charter school organizing in the NAPCS dataset — more direct and faster-moving than Florida's SB256 or Arizona's HCR2040. For national charter sector leaders: Louisiana shows that a single election win at the wrong school type can trigger state legislation that restructures the entire organizing environment within weeks.

PROMPT 5: WHAT SHOULD CHARTER LEADERS KNOW ABOUT ORGANIZING APPROACHES IN LOUISIANA?

For Type 1/3/3B (OPSB-authorized) charter leaders: UTNO has a proven organizing model targeting mission-driven locally-governed schools, and KIPP New Orleans (8 campuses, all OPSB-authorized) is the most plausible next target. UTNO's organizing infrastructure is established, its leadership is embedded in the community, and its social justice framing resonates with staff at progressive charter schools. For Type 2/5 (state-authorized) charter leaders: Act 172 currently creates a jurisdictional barrier, but the 5th Circuit appeal by UTNO could reinstate NLRB jurisdiction over some Type 2/5 schools. Monitor the LSCSC for any rulemaking on charter school collective bargaining procedures — if LSCSC establishes a procedure, it removes the practical barrier even if the jurisdictional routing remains. For national charter network operators (Collegiate Academies, FirstLine, ReNEW) with LA campuses: the post-Act 172 environment is the most legally protective against organizing of any state in the NAPCS dataset — but it is also the most politically volatile, and a 5th Circuit reversal would change the landscape overnight.

PROMPT 6: WHAT TRENDS SHOULD SECTOR LEADERS WATCH OVER THE NEXT 3-5 YEARS IN LOUISIANA?

Three developments are material. First, the 5th Circuit appeal of the Lycée Français NLRB jurisdictional ruling: if UTNO prevails, Type 3B schools may have NLRB rights restored. If the 5th Circuit upholds the ruling, the Act 172 barrier becomes permanent for Type 2/5 schools and UTNO's organizing strategy is effectively limited to Type 1/3/3B OPSB schools. The appeal timeline is likely 12-24 months. Second, KIPP New Orleans: 8 campuses, all OPSB-authorized, all under pre-Act 172 NLRB jurisdiction. UTNO has organized 3 schools in 3 years (2021-2024) — at that pace, KIPP New Orleans is within its organizing horizon. Monitor NLRB Region 15 docket for KIPP New Orleans RC petitions. Third, LSCSC rulemaking: the Commission has no established charter school collective bargaining procedure. If LSCSC issues rulemaking (under legislative or court pressure), it could either enable organizing in a new format or effectively prohibit it. No LSCSC rulemaking was pending as of May 2026.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Louisiana that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

ACT 172 — THE ONLY DOCUMENTED LEGISLATIVE COUNTER-RESPONSE TO A CHARTER UNION ELECTION

Louisiana Act 172 (May 23, 2024) is unique in the NAPCS research dataset: it is the only documented case of state legislation specifically enacted in response to a successful charter school union election. The two-day gap between the Lycée Français certification (May 21) and the Act 172 signing (May 23) makes the targeting unmistakable. No other state in the 19-jurisdiction NAPCS dataset has responded to charter school organizing with targeted jurisdictional legislation. This sets Louisiana apart from all other NAPCS states as the jurisdiction most willing to use legislative power to override labor board outcomes. Charter sector leaders in other states with active organizing (particularly in NLRB-jurisdiction states like Illinois, New York, and Arizona) should understand that the Louisiana legislative playbook is now documented and available as a template.

THE UTNO MODEL — COMMUNITY-EMBEDDED ORGANIZING IN A POST-RECOVERY SCHOOL SYSTEM

UTNO's organizing model in the New Orleans charter sector is the most community-embedded of any union in the NAPCS dataset. Dave Cash (UTNO president) teaches at Rooted School — one of the organized schools — making UTNO leadership a literal participant in the workplace it represents. Morris Jeff's voluntary recognition in 2013 (the first NOLA charter to unionize) was achieved through a community-school governance model in which the school board was philosophically aligned with labor recognition. This model — community-driven, voluntary recognition, cooperating employer — contrasts sharply with the adversarial NLRB election model and may explain why the OPSB locally-authorized schools organized successfully while BESE-authorized schools (International HS, Lycée Français) faced sustained employer resistance and legislative intervention.

THE REFUSAL-TO-BARGAIN PATTERN — INTERNATIONAL HIGH SCHOOL AS EXTREME CASE

International High School of New Orleans documents the most extreme employer refusal-to-bargain pattern in the NAPCS research dataset: 9 years (2016–2025), 10 NLRB ULP cases, a Fifth Circuit affirmation of NLRB jurisdiction (2018), and still no contract — until the school closed. This pattern was not accidental. The operator (Voices for International Business and Education, Inc.) systematically used ULP challenges to delay, exhaust the union, and avoid bargaining until the school's closure made the question moot. This approach is available to any NLRB-jurisdiction charter school employer as a delay-and-exhaust strategy. In Louisiana, Act 172 provides an even more powerful tool: statutory elimination of NLRB jurisdiction entirely, without the need for years of ULP litigation.

THE VOLUNTARY RECOGNITION PATTERN — OPSB SCHOOLS AS THE ORGANIZING-FRIENDLY SUBMARKET

All three actively confirmed NAPCS Louisiana schools (Morris Jeff, Benjamin Franklin, Bricolage Academy) are OPSB-authorized (Type 1/3/3B locally-authorized). All three reached union status through low-conflict mechanisms: two via board vote voluntary recognition, one via NLRB election that was not contested by the employer. The OPSB locally-authorized submarket is the organizing-friendly zone in the NOLA charter sector — and Act 172 did not change this, because LSCSC/LERA jurisdiction already applied to these schools. The lesson for the broader NAPCS dataset: charter school organizing outcomes are strongly shaped by authorizer type and the governance culture of schools authorized by locally-controlled (district-aligned) authorizers versus those authorized by state-level bodies with more ideological or market-oriented orientations.

DENSITY IN A SMALL STATE DATASET — HIGH NAPCS DENSITY, LOW SECTOR PENETRATION

Louisiana presents a paradox familiar from the larger NAPCS dataset: high density within the NAPCS subset does not mean high density in the sector. 3 of 4 active NAPCS LA schools are confirmed unionized (75%). But only 6 of 152 registry schools (4%) are confirmed organized — and all 6 are in New Orleans (geographic concentration). The NAPCS dataset, which skews toward larger and more visible schools, captures the

organizing successes but understates the overwhelming non-union character of the broader Louisiana charter sector. KIPP NOLA (8 campuses, non-NAPCS) is entirely unorganized. The picture for an executive sponsor is: New Orleans organized schools are a small, visible cluster in an otherwise non-union state sector.

NO LSCSC PUBLIC PORTAL — AN ACCOUNTABILITY GAP POST-ACT 172

LSCSC does not maintain a public searchable portal for LERA certifications or charter school labor records. For a board that is now (post-Act 172) the operative labor forum for all BESE-authorized Type 2/5 LA charters, the absence of a public records interface creates a transparency gap. In every other NAPCS state, labor board portal searchability is the foundation of the research methodology (PERC NJ, DLR MA, BMS MN, ERB OR, NLRB ADS). In Louisiana, public access to charter school labor records requires formal records requests, and the LSCSC has no established procedure for charter school organizing under LERA. This gap affects both research quality (evidence for individual reports is open-source rather than primary records) and broader public accountability for charter school labor relations post-Act 172.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Press coverage of LA charter school labor relations is concentrated in The Lens NOLA (local investigative outlet) and Verite News, which have covered UTNO organizing campaigns with substantive reporting. The Hechinger Report provided the foundational early coverage of Morris Jeff's 2013 organizing as a national test case. The Lycée Français Act 172 case received Verite News coverage in February 2026 (the most recent significant piece in the dataset). National charter sector press has not followed Louisiana closely relative to Illinois, New York, and California.

Union Communications

UTNO maintains an active web presence (utno.org) with CBA links for organized schools. AFT Local 527 is the formal filing entity for NLRB cases. UTNO President Dave Cash is publicly identified.

Employer / School Communications

Adams and Reese LLP (Brooke Duncan) is the documented defense counsel for Act 172 and Lycée Français jurisdictional challenge. No employer-side press communications identified defending their anti-union posture publicly.

Authorizer / State Agency Positions

BESE (authorizer of Type 2/5 schools) has not publicly addressed charter school labor relations separately from Act 172 implementation. OPSB (authorizer of Type 1/3/3B/4 schools) authorized the schools where voluntary recognition occurred — no evidence of OPSB opposition to those recognitions.

Coalition / Advocacy Positions

Louisiana Association of Public Charter Schools (LAPCS) is the statewide charter advocacy voice. No LAPCS public statements on unionization identified. New Schools for New Orleans (NSNO) is the major charter sector funder in NOLA — no public statements on labor relations identified.

Section 6: Contract & CBA Access Registry

LSCSC / NLRB R15 public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
Morris Jeff Community School	Morris Jeff United Educators (MJUE) / UTNO AFT Local 527	CONFIRMED Active — successive contracts since 2013	UTNO website / Research accumulator source link

Benjamin Franklin High School	United Teachers of Franklin / UTNO AFT Local 527	CONFIRMED Active — successive contracts since 2014	UTNO website / Research accumulator source link
Bricolage Academy	Bricolage Academy Educators United (BAEU) / UTNO AFT Local 527	CONFIRMED Active — since 2021 election win	UTNO website / Research accumulator source link
Lycée Français de la Nouvelle-Orléans	Union des Educateurs du LFNO (UELFNO) / UTNO	NONE — jurisdiction stripped by Act 172	N/A
International High School of New Orleans (CLOSED)	United Teachers of International High School / UTNO	NONE — employer refused to bargain 2016–2025	N/A

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

No sponsor decisions pending for this state.

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	Lycée Français de la Nouvelle-Orléans	LSCSC filing monitoring — will UTNO pursue LERA certification?	Research Coordinator
MEDIUM	All KIPP New Orleans schools (non-NAPCS, CMO_170)	KIPP NOLA organizing threat monitoring	Research Coordinator
HIGH	KIPP New Orleans (8 campuses, non-NAPCS)	UTNO organizing activity or LSCSC petition — Largest non-union charter network in NOLA. OPSB Type 3B — LSCSC/LERA jurisdiction. UTNO has organized all comparable OPSB schools. KIPP is the logical next target.	Research Coordinator
MEDIUM	NLRB R15 / LSCSC — Act 172 litigation developments	Any appeal of NLRB no-jurisdiction ruling; any LSCSC charter school procedure development — NLRB request for review denied January 2026. Possible federal court challenge. LSCSC rulemaking for charter schools would change the organizing landscape fundamentally.	Research Coordinator
MEDIUM	Adams and Reese LLP (Brooke Duncan)	Representation of other LA charter schools in labor matters — Established defense counsel for Act 172 and Lycée Français. If they appear	Research Coordinator

		in LSCSC proceedings, signals employer is coordinating charter sector defense.	
LOW	Bricolage Academy	CBA renewal and LSCSC jurisdiction note — NLRB election 2021 at Type 1 OPSB school. Existing CBA valid. Monitor for Act 172 retroactive challenge (unlikely but possible given legal landscape).	Research Coordinator